

Ram Bachan Singh vs The State Of Bihar on 3 April, 2023

Author: Partha Sarthy

Bench: Partha Sarthy

IN THE HIGH COURT OF JUDICATURE AT PATNA

Civil Writ Jurisdiction Case No.6259 of 2020

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Ram Bachan Singh S/o Late Ganga Dayal Singh R/o-Village-Salempur, P.O.-
Salempur, P.S.-Pirpanti, District-Bhagalpur.

... .. Petitioner/s

Versus

1. The State of Bihar through the Principal Secretary Department of Revenue and Land Reforms Government of Bihar, Patna.
2. The Principal Secretary Department of Revenue and Land Reforms, Governmen of Bihar, Patna.
3. The Divisional Commissioner, Bhagalpur
4. The Collector-Cum-District Magistrate, Bhagalpur.
5. The Deputy Collector, Land Reforms, Pirpanti, Bhagalpur.
6. The Circle Officer, Pirpanti, Bhagalpur,
7. The Executive Engineer National Highway No.-80, Bhagalpur.
8. Ranjit Kumar Yadav Sono f Late Ganga Yadav, R/o-Village-Foujdari P.O.- Salempur, P.S.-Pirpanti, District-Bhagalpur.
9. Santosh Yadav Son of Late Ganga Yadav, R/o-Village-Foujdari P.O.- Salempur, P.S.-Pirpanti, District-Bhagalpur.
10. Basuki Nath Yadav Son of Late ganga Yadav. R/o-Village-Foujdari P.O.- Salempur, P.S.-Pirpanti, District-Bhagalpur.

... .. Respondent/s

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Appearance :

For the Petitioner/s	:	M/s Vidya Saga Ashok Kumar Singh Amit Anand, Advocates
For the State	:	Mr. Birendra Prasad Singh, AC to SC 19
For the Respondent	:	M/s P.C. Agrawal
8, 9 and 10		Ranjan Kumar Dubey, Advocates

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CORAM: HONOURABLE MR. JUSTICE PARTHA SARTHY

ORAL JUDGMENT

Date : 03-04-2023

Heard learned counsel for the petitioner, learned

counsel for the respondent-State and learned counsel for the

respondent nos. 8, 9 and 10

Patna High Court CWJC No.6259 of 2020 dt.03-04-2023

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The petitioner has filed the instant application for the following relief(s):

"To issue an appropriate writ, preferably in the nature of certiorari for setting aside the order dated 13.01.2020

passed by the Hon'ble Chairman, Bihar Land Tribunal Patna in B.L.T. case No. - 172 of 2019 by which the order passed by the competent authority on 09.02.2018 in B.L.D.R. case no. 9 of 2017 alongwith the order dated 08.10.2018/ 22.10.2018 passed in Mis. (B.L.D.R) case no. 2/2018-19 passed by the court of Divisional Commissioner, Bhagalpur has been set aside. (II) To hold and declare that the petitioner had not claimed his right , title and interest over the land in dispute rather the petitioner had approached the competent authority against his threatened dispossession from his ancestral land.

(III) To grant any other relief (s) for which the petitioner may be found entitled to in the facts and circumstances of this case."

The case of the petitioner in brief is that the land in dispute relates to an area of 7 decimal of land appertaining to khata no. 21, khesra no. 181, Mauza Shahabad in Thana no. 94. The name of the petitioner is recorded in the khatian. The petitioner and his ancestor were in the possession of the land in question. They have been paying rent and have been granted rent receipts. There is no dispute with respect to their Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 possession.

It is further submitted that the petitioner gave an application before the Circle Officer, Pirpainti for measurement of their land and the requisite fee for measurement was deposited by them. The Anchal Amin got the land measured and as per the measurement report the petitioner started construction. However, taking the authorities in conspiracy the private respondents started to disturb the construction work of the petitioner which led to the petitioner filing an application under section 4(1)(h) of the Bihar Land Disputes Resolution Act, 2009 (hereinafter referred to as 'the Act') praying therein for measurement of the land of the petitioner and demarcation of the boundary.

By order dated 9.2.2018 (Annexure-4) passed in Land Dispute Case no. 9/2017-18, the application filed by the petitioner was allowed by the Deputy Collector Land Reforms, Kahalgaon. Being aggrieved the private respondents preferred B.L.D.R. Case no. 2/2018-19 before the Divisional Commissioner, Bhagalpur which was dismissed by order dated 22.10.2018 (Annexure-5). Against the said order, the private respondents filed B.L.T. Case no. 172 of 2019 in the Bihar Land Tribunal, Patna. The said case filed by the private respondents Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 was allowed by the learned Tribunal by order dated 13.1.2020 (Annexure-8) against which the petitioner has preferred the instant application for the reliefs mentioned hereinabove.

Counter affidavits have been filed in the case on behalf of the respondents.

It is submitted by learned counsel for the respondents that the application of the petitioner under the Act was not maintainable in view of the fact that the petitioner is the raiyat of land in question. Reading section 4(1)(h) of the Act which gives jurisdiction to the competent authority with respect to boundary disputes together with the definition of land as defined under Rule 2(b) of the Act, there is no question of petitioner's application before the Deputy Collector Land Reforms not being maintainable.

The application is opposed by learned counsel appearing for the respondents.

Having heard learned counsel for the parties and taking into consideration the averments made, the question with respect to maintainability of an application under the Bihar Land Disputes Resolution Act, 2009 came up for consideration in the Court in the case of Basudev Saw & Ors. versus The State of Bihar & Ors. which was decided by judgment dated Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 29.3.2023 passed in C.W.J.C. no. 9536 of 2022. The relevant portion of the said judgment is quoted hereinbelow for ready reference:-

"From the materials on record, what is not in dispute is that the application filed by the petitioners as contained in Annexure-1 to the writ application before the D.C.L.R., Dehri, Rohtas was under the Bihar Land Disputes Resolution Act, 2009.

..... Admittedly, the case of the respondent no.5 not being that the land in question was a Government land, which was settled in his favour under any of the Acts, contained in Schedule-1 to the Act, there can be no dispute with respect to the fact that the respondent no.5 is neither an allottee nor a settlee as defined under the Act.

The next question which would arise is as to whether the authority under the Act would have jurisdiction to decide the disputes as mentioned in sections 4(1)(e) to 4(1)(j) with respect to persons who are not settlee/allottee as in the case of this petitioner. It is true that sections 4(1)(a), (b) and (c) specifically mentions the term 'settlee/allottee' while the same is not used in sections 4(1)(e) to 4(1)(j). At this stage, it would be relevant to refer to the preamble of the Act for purpose of ascertaining the intent for which the legislature enacted the Act.

The preamble of the Act is reproduced herein below for ready reference:

"Preamble:- Whereas, in the State of Bihar, disputes relating to record of rights, Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 boundaries, entries in revenue records, unlawful occupation of raiyati land and forcible dispossession of allottees and settlees of public land, generate problems and cause unnecessary harassment to bonafide allottees/settlees, raiyats or occupants;

WHEREAS, such disputes with respect to raiyati land or public land allotted in favour of different classes of allottees are unnecessarily occupying major space of Civil Courts and Hon'ble High Court and which should otherwise have been resolved by the Revenue Authorities, who may be better equipped to deal with such disputes having regard to their continued presence in the field offices and their expertise in Revenue Administration, WHEREAS, in larger public interest it is deemed necessary to provide for effective and speedy mechanism to resolve such disputes which give rise to major turbulence if not addressed immediately and effectively;

AND, WHEREAS, it has been found in analysis of data relating to nature of disputes that they mostly appertain to matters connected with the record of rights, partition of jamabandi, forcible dispossession of allottees / raiyats, boundary disputes etc. and in this context, the administration of the following Acts is Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 involved:

(1) The Bihar Land Reforms Act, 1950, (2) The Bihar Tenancy Act, 1885, (3) The Bihar Privileged Persons Homestead Tenancy Act, 1947, (4) The Bihar Bhoodan Yagna Act, 1954, (5) The Bihar Land Reforms (Fixation of Ceiling and Acquisition of Surplus Land) Act, 1961, (6) The Bihar Consolidation of Holdings and Prevention of Fragmentation Act, 1956, AND, Whereas, different forums and procedures have been provided for the resolution of disputes under the above referred Acts and it is considered expedient to provide a uniform and common forum, procedure and mechanism which would achieve the objective of effective, efficacious and speedy resolution of disputes."

From reading of the preamble and the Act as a whole, there remains no doubt that the purpose of the legislature in enacting the Act was effective and speedy mechanism to resolve disputes with respect to matters connected with record of rights, partition of jamabandi, forcible dispossession of allottees/raiylats, boundary disputes etc. and in this context, the Acts namely The Bihar Land Reforms Act, 1950, The Bihar Tenancy Act, 1885, The Bihar Privileged Persons Homestead Tenancy Act, 1947, The Bihar Bhoodan Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 Yagna Act, 1954, The Bihar Land Reforms (Fixation of Ceiling and Acquisition of Surplus Land) Act, 1961 and The Bihar Consolidation of Holdings and Prevention of Fragmentation Act, 1956 were involved.

Thus, in the opinion of the Court, what appears from the reading of the Act as a whole along with its preamble as quoted herein above and specifically section 3 of the Act, the purpose of the Act is on resolution of any dispute arising out of or under any of the six Acts mentioned in Schedule-1.

So far as the instant case is concerned, the case of the respondent no.5, on whose application the proceedings under the Bihar Land Disputes Resolution Act, 2009 commenced in the Court of the learned D.C.L.R., Dehri, Rohtas, was neither an allottee nor a settlee nor was his case that the land in question which is the subject matter of the dispute came in his possession under any of the six Acts mentioned in Schedule-1 to the Bihar Land Disputes Resolution Act, 2009.

Thus, in view of the facts stated herein above, the application filed by the respondent no.5 before the D.C.L.R., Dehri, Rohtas under the Bihar Land Disputes Resolution Act, 2009 was not maintainable and as a result the order dated 20.5.2022 passed in Case no.17/2021-22 by the D.C.L.R., Dehri, Rohtas being without jurisdiction, is not sustainable and is hereby quashed."

So far as the facts of the instant case is concerned, in the opinion of the Court, the same are similar to the facts of the Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 case of Basudev Saw (supra). Herein also the petitioner through his ancestors claim to be khatiani raiyat. The petitioner was paying rent and was being granted rent receipts. It is not in dispute that the petitioner herein is neither an allottee nor a settlee of the land in question nor is the petitioner claiming right over the land in question as a result of the same having been settled under any one of the six Acts mentioned in Schedule I of the Bihar Land Disputes Resolution Act, 2009. Thus in the opinion of the Court the very application filed by the petitioner on 21.11.2017 under section 4(1)(h) of the Bihar Land Disputes Resolution Act, 2009 before the Deputy Collector Land Reforms was not maintainable.

Consequently the order dated 9.2.2018 (Annexure-4) passed in Land Dispute Case no. 9/2017-18 by the D.C.L.R., Kahalgaon would without jurisdiction. As such the orders dated 8.10.2018/22.10.2018 (Annexure-5) passed in Misc. (B.L.D.R.) Case no. 2/1018-19 by the Divisional Commissioner, Bhagalpur as also the order dated 13.1.2020 (Annexure-8) passed in B.L.T. Case no. 172 of 2019 by the Bihar Land Tribunal, Patna would also not be sustainable. As such the order dated 9.2.2018 (Annexure-4), order dated 8.10.2018/22.10.2018 (Annexure-5) and order dated 13.1.2020 (Annexure-8) are all set aside.

Patna High Court CWJC No.6259 of 2020 dt.03-04-2023 The writ application stands disposed of with liberty to the petitioner to approach the Civil Court of competent jurisdiction for appropriate relief.

(Partha Sarthy, J) Spd/-

AFR/NAFR

CAV DATE

Uploading Date

07.04.2023

Transmission Date